



CHAPTER xxxv.

An Act to confirm a Provisional Order of the Local Government Board relating to Bath. [2nd June 1911.] A.D. 1911.

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Viet
9 c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
schedule
confirmed.

2. Whereas a Joint Committee of the House of Lords and House of Commons has been appointed to inquire into the application of the provisions contained in the Local Government Acts 1888 and 1894 and the Local Government (Scotland) Acts 1889 and 1894 relating to financial adjustments consequent on the alteration of the boundaries of a local government area or on an alteration in the constitution or status of the governing body of a local government area and to report if they are of opinion that any amendments in such provisions are desirable Be it therefore enacted as follows:—

Financial
adjustments
to be in
accordance
with recom-
mendation
of Joint
Committee.

(1) Notwithstanding the provisions of the Local Government Act 1888 the Local Government Act 1894 and of the Order set forth in the schedule to this Act

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relating to financial adjustments no adjustments to be made between the councils of the county and county boroughs or between any authorities affected by the said Order or this Act shall be made except by agreement until after the thirty-first day of March one thousand nine hundred and thirteen or until the confirmation of a Provisional Order made in pursuance of this section whichever shall be the earlier:

(2) If the said Joint Committee report that they are of opinion that amendments are desirable in the provisions contained in the Local Government Acts 1888 and 1894 relating to financial adjustments consequent on the alteration of the boundaries of a local government area the Local Government Board shall make such Provisional Order as shall be necessary for the purpose of applying the recommendations of the Joint Committee so far as they are applicable to any adjustments to be made between the councils of the county and county boroughs and other authorities referred to in subsection (1) of this section Provided that no Provisional Order made in pursuance of this section shall affect any adjustment that may have been made by agreement:

(3) The provisions of the Local Government Act 1888 relating to Provisional Orders shall so far as they are applicable and with any necessary modifications extend and apply to any Provisional Order made in pursuance of this section.

Short title.

3. This Act may be cited as the Local Government Board's Provisional Order (1910) Confirmation (No. 12) Act 1911.

S C H E D U L E.

A.D. 1911.

CITY OF BATH.

Provisional Order made in pursuance of Sections 54 and 59 Bath Order.
of the Local Government Act 1888.

To the Mayor Aldermen and Citizens of the City of Bath ; —

To the Justices of the Peace for the said City ; —

To the Court of Quarter Sessions for the said City ; —

To the Justices of the Peace for the County of Somerset in
Quarter Sessions assembled ; —

To the County Council of Somerset ; —

To the Rural District Council of Bath ; —

To the Guardians of the Poor of the Bath Union ; —

To the Parish Councils of Charlcomb Twerton and Weston ; —

To the Overseers of the Poor of the Parishes of Bath Charlcomb
Twerton and Weston ; —

To the Bathwick Lyncombe and Widcombe and Saint James Saint
Michael Saint Saviour and Walcot Burial Boards ; —

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the 51 & 52 Vict.
Local Government Board are empowered to make a Provisional Order c. 41.
for altering the boundary of any Borough and by such Order to divide
or alter any electoral division ;

And whereas the City of Bath is a County Borough within the
meaning of the Local Government Act 1888 and is for the purposes of
that Act situate in the County of Somerset and the inhabitants are
a body corporate by the name of the Mayor Aldermen and Citizens of
the City of Bath and act by the Council of the said City which now
consists of the Mayor (who is also an Alderman) thirteen other
Aldermen and forty-two Councillors and the said City is for the pur-
poses of the election of Councillors divided into seven wards known as
the Bathwick Ward the Kingsmead Ward the Lansdown Ward the
Lyncombe and Widcombe Ward the Saint James' Ward the Saint
Michael Ward and the Walcot Ward ;

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A.D. 1911. And whereas the said City is co-extensive with the Parish of
Bath Order. Bath and is an Urban Sanitary District of which the Mayor Aldermen
 and Citizens acting by the Council are the Urban Sanitary Authority;

And whereas the said City has a separate court of quarter sessions
 commission of the peace police force recorder and coroner;

2 Edw. 7. And whereas in pursuance of the Education Act 1902 the Council
 c. 42. of the said City are the local education authority;

And whereas the unrepealed provisions of the Local Acts specified
 in Part I. of the Schedule to this Order and of the Confirmation Acts
 specified in Part II. of the said schedule so far as the last-mentioned
 Acts relate to the Orders specified in that schedule are in force in the
 said City;

And whereas the Urban Sanitary Authority of the said City have
 adopted the provisions of—

53 & 54 Vict. (a) The Infectious Disease (Prevention) Act 1890;

c. 34. (b) The Public Health Acts Amendment Act 1890;

53 & 54 Vict. (c) The Private Street Works Act 1892; and
 c. 59.

55 & 56 Vict. (d) The Notification of Births Act 1907;
 c. 57.

7 Edw. 7. and those provisions are accordingly in force in the said City;
 c. 40.

9 & 10 Vict. c. 74.
 10 & 11 Vict. c. 61.
 41 & 42 Vict. c. 14.
 45 & 46 Vict. c. 30.
 59 & 60 Vict. c. 59.
 62 & 63 Vict. c. 29.
 55 & 56 Vict. c. 53.
 56 Vict. c. 11.
 1 Edw. 7. c. 19.

And whereas the Baths and Washhouses Acts 1846 to 1899 and the
 Public Libraries Acts 1892 to 1901 are in force in the said City;

15 & 16 Vict. c. 85.
 6 Edw. 7. c. 44.

And whereas the Bathwick Burial Board the Lyncombe and
 Widcombe and Saint James Burial Board the Saint Michael Burial
 Board the Saint Saviour Burial Board and the Walcot Burial Board
 are the authorities for the execution of the Burial Acts 1852 to 1906
 for areas wholly included in the said City;

And whereas the Parishes of Charlcomb Twerton and Weston in
 the Administrative County of Somerset immediately adjoin the said
 City and are contributory places in the Rural District of Bath and are
 subject to the jurisdiction of the Rural District Council of Bath and
 one Rural District Councillor is elected for the Parish of Charlcomb
 and the Parish of Langridge in the said Rural District and four Rural
 District Councillors are elected for the Parish of Weston and the
 Parish of Twerton is for the purpose of the election of Rural District
 Councillors divided into three wards known as the East Ward the
 South Ward and the West Ward and one Rural District Councillor is
 elected for the East Ward two Rural District Councillors are elected for
 the South Ward and two Rural District Councillors are elected for the
 West Ward;

And whereas the said Rural District Council have adopted the
 provisions of the Infectious Disease (Prevention) Act 1890 and the

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provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District; A.D. 1911.
Bath Order.

And whereas the said Parishes of Bath Charlcomb Langridge Twerton and Weston are included in the Bath Union and the said Parish of Bath is represented on the Board of Guardians of that Union by thirty Guardians and for the purpose of the election of Guardians is divided into nine wards known as the Bathwick Ward the Kingsmead Ward the Lansdown Ward the Lyncombe and Widcombe (No. 1) Ward the Lyncombe and Widcombe (No. 2) Ward the Saint James' Ward the Saint Michael's Ward the Walcot East Ward and the Walcot West Ward and the ten Rural District Councillors elected as aforesaid for the said Parishes of Charlcomb Langridge and Weston and the wards of the said Parish of Twerton are the representatives of those parishes on the said Board of Guardians;

And whereas the said Parishes of Charlcomb Twerton and Weston are Rural Parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established; 56 & 57 Vict.
c. 73.

And whereas the Parish Council for each of the said Parishes of Twerton and Weston is the authority for the execution of the Burial Acts 1852 to 1906 in the said Parishes respectively;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Improvements Act 1860 are in force in the said Parish of Twerton and the Lighting and Watching Act 1833 is in force in the said Parish of Twerton and in parts of the said Parishes of Charlcomb and Weston; 23 & 24 Vict.
c. 30.
3 & 4 Will. 4.
c. 90.

And whereas in pursuance of the Education Act 1902 the said Parishes of Charlcomb Twerton and Weston form part of the area of the County Council of Somerset as the local education authority;

And whereas by virtue of an Order of the Local Government Board dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered by two other Orders of the Local Government Board dated respectively the Fifteenth day of February One thousand eight hundred and ninety-eight and the Twenty-third day of July One thousand nine hundred and six the number of County Councillors for the Administrative County of Somerset is sixty-nine and the said Parish of Charlcomb is included in the Batheaston Electoral Division of that County and the said Parishes of Twerton and Weston constitute respectively the Twerton and Weston Electoral Divisions of that County:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order 51 & 52 Vict.
c. 41.

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A.D. 1911. that from and after the date of the Act of Parliament confirming this
Bath Order. Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means the Ninth day of November One thousand nine hundred and eleven;
- (2) The expression “the existing City” means the City of Bath as it existed immediately prior to the commencement of this Order;
- (3) The expression “the City” means the existing City as extended by this Order;
- (4) The expression “the Corporation” means as the context requires the Mayor Aldermen and Citizens of the existing City or of the City acting by the Council;
- (5) The expressions “the County” and “the County Council” mean respectively the Administrative County of Somerset and the County Council of that County;
- (6) The expressions “the Rural District” and “the Rural Council” mean respectively the Rural District of Bath and the Rural District Council of that district;
- (7) The expression “the City maps” means the two maps each marked “Map of the City of Bath as extended 1910” and sealed with the official seal of the Local Government Board;
- (8) The expression “the Ward maps” means the two maps each marked “Map of the Wards of the City of Bath as extended 1910” and sealed with the official seal of the Local Government Board;
- (9) The expression “the added areas” means the parts of the Rural District added to the existing City by this Order;
- (10) The expressions “the added part of Charlcomb” and “the added part of Weston” mean respectively the parts of those Parishes which are coloured yellow and green on the City maps;
- (11) The expressions “the existing Parish of Bath” “the existing Parish of Charlcomb” and “the existing Parish of Weston” mean in each case the Parish as it existed immediately prior to the commencement of this Order and the expressions “the Parish of Bath” “the Parish of Charlcomb” and “the Parish of Weston” mean in each case the Parish as altered by this Order;

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- (12) The expression "the existing Burial Boards" means the Bathwick Burial Board the Lyncombe and Widcombe and Saint James Burial Board the Saint Michael Burial Board the Saint Saviour Burial Board and the Walcot Burial Board; A.D. 1911.
Bath Order.
- (13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;
- (16) The expression "the Local Act of 1789" means an Act passed in the twenty-ninth year of His late Majesty King George III. and intituled "An Act for Protecting " and Securing the Hot Baths and Springs within the " City of Bath from Injury by Incroachments and " Annoyances for enlarging or rebuilding the present " Pump Rooms there for widening certain Streets Lanes " and Public Passages and for making certain new " Streets and Passages to render the Approaches to the " said Hot Baths Springs and Pump Rooms more safe " and commodious" and the expression "the Local Act of 1851" means the City of Bath Act 1851.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and eleven: Commence-
ment of
Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and eleven and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order: Date of
operation of
Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

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Bath Order.

Date of
operation for
purposes of
certain grants
and local taxa-
tion licences.
53 & 54 Vict.
c. 60.
7 Edw. 7. c. 13.
8 Edw. 7. c. 16.
10 Edw. 7. c. 8.

Provided also that for the purposes of sections 20 22.23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by section 17 of the Finance Act 1907 section 6 of the Finance Act 1908 and section 88 of the Finance (1909-10) Act 1910 as affected by any Order in Council made under section 6 of the Finance Act 1908 the existing city shall be deemed not to have been altered and the added areas shall be deemed to continue parts of the county until after the Twenty-first day of March One thousand nine hundred and twelve.

Extension of
City.

Art. III.—(1) The boundary of the existing City the area whereof is coloured pink on the City maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the Parish of Twerton the area whereof is coloured brown on the City maps the added part of Charlcomb and the added part of Weston.

(2) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City and shall be the County Borough for the purposes of the Act of 1888.

Deposit of
maps.

Art. IV.—(1) One of the City maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Postmaster-General to the Registrar-General to the Board of Trade and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and the Board of Agriculture and Fisheries.

Copies of
map to be
evidence.

(2) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation All fees so received shall be carried to the credit of the Borough fund.

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Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the justices of the peace appointed for the existing City and of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City : A.D. 1911.
Bath Order.
Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the City. Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

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 —
Bath Order.
 Division into
 wards.

Art. VII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

(1) For the purposes of the election of Councillors the City shall be divided into fourteen wards which shall be named respectively the Bathwick Ward the Kingsmead Ward the Lansdown Ward the Lyncombe Ward the Oldfield Ward the Saint James Ward the Saint Michael Ward the Twerton East Ward the Twerton West Ward the Walcot North Ward the Walcot South Ward the Westmoreland Ward the Weston Ward and the Widcombe Ward:

Boundaries
 of wards.

(2) Each of the said wards shall comprise that portion of the City which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps:

(3) Three Councillors shall be assigned to each of the said wards.

Provisions
 for election
 of Councillors
 in 1911.

Art. VIII. For the purposes of the election of a town council for the City in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and eleven the following provisions shall apply:—

(A) The town clerk and the Mayor of the existing City or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing City shall be the returning officer at the election for all the wards. Provided that the Mayor of the existing City may appoint some other person to act as returning officer at the election for any of the wards:

(B) Forty-two Councillors of the City shall be elected on the First day of November One thousand nine hundred and eleven and fourteen Aldermen of the City shall be elected on the Ninth day of November One thousand nine hundred and eleven:

(C) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing City who shall be in office on the First day of November One thousand nine hundred and eleven shall go out of office on that date and all the Aldermen of the existing City who shall be in office on the Eighth day of November One thousand nine hundred and eleven shall go out of office on that date and all the said Councillors and Aldermen shall if otherwise qualified be eligible for election as Councillors of the City on the First day of November One thousand nine hundred and eleven:

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- (D) Notwithstanding anything in the Municipal Corporations Acts A.D. 1911.
to the contrary any casual vacancy which shall occur after *Bath Order.*
the date of the Act of Parliament confirming this Order
among the members of the Council of the existing City
shall not be filled up.

Art. IX.—(1) The Councillors elected for the City in the year One Retirement
thousand nine hundred and eleven in pursuance of this Order shall of Councillors
retire as follows:— and Aldermen
elected in
1911.

(A) The Councillor for each ward who is elected by the smallest
number of votes on the First day of November One
thousand nine hundred and twelve:

(B) The Councillor for each ward who is elected by the largest
number of votes on the First day of November One
thousand nine hundred and fourteen:

(C) The other Councillor for each ward on the First day of
November One thousand nine hundred and thirteen.

(2) The Aldermen elected for the City in the year One thousand
nine hundred and eleven in pursuance of this Order shall retire as
follows:—

(A) The seven Aldermen elected by the smallest number of votes
on the Ninth day of November One thousand nine hundred
and fourteen:

(B) The other seven Aldermen on the Ninth day of November One
thousand nine hundred and seventeen.

Provided that if for any reason it is doubtful which of the
Councillors or Aldermen as the case may be ought to retire on the
dates above specified the Council of the City shall on the Ninth
day of November One thousand nine hundred and eleven or at the next
following quarterly meeting and not later by a majority of votes or
in case of an equality of votes by the casting vote of the chairman
determine which of the Councillors or Aldermen as the case may be
shall go out of office on the dates above specified respectively.

Art. X.—(1) Sections 10 12 to 14 17 to 28 30 to 36 39 41 42 Local Acts
44 to 53 55 56 59 to 65 67 69 to 80 85 and 86 of the Local Act and Orders.
of 1851 shall be repealed.

(2) The unrepealed provisions of the Local Act of 1789 and of
the Local Act of 1851 shall not be in force within or apply to any
part of the added areas.

(3) Subject to the provisions of this Order the unrepealed pro-
visions of the Local Acts and of the Confirmation Acts specified in the
Schedule to this Order so far as the last-mentioned Acts respectively

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A.D. 1911. relate to the Provisional Orders specified in that Schedule and of any
Bath Order. other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof.

Byelaws &c. Art. XI. Subject to the provisions of this Order—

- (1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges are altered or repealed :
- (2) All byelaws and regulations made by the County Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved by the Rural Council before that date or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and have not been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by that Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

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Art. XII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

A.D. 1911.
Bath Order.
 Town clerk
 and other
 officers con-
 tinued.

(2) The auditors of the existing City who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors.

City auditors.

Art. XIII.—(1) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the City and in every other case out of the borough fund and borough rate of the City and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Compensa-
 tion to exist-
 ing officers.

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XIV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any

Actions &c.
 not to abate.

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A.D. 1911. part of the added areas shall not be in anywise prejudicially affected
Bath Order. by reason of the making of this Order but may be continued prosecuted
 and enforced by or against the Corporation of the City.

Saving for (2) Anything duly done or suffered and all contracts deeds bonds
contracts &c. agreements and other instruments (subsisting at the commencement of
 this Order) entered into or made by the Rural Council or their pre-
 decessors in relation exclusively to any part of the added areas
 shall be of as full force and effect against or in favour of the Corpo-
 ration of the City and may be continued and enforced as fully and
 effectually as if instead of the Rural Council or their predecessors the
 Corporation had done or suffered the same or been a party thereto.

Corporation Art. XV. Subject to the provisions of this Order all property vested
property &c. in the Corporation at the commencement of this Order for the benefit
 of the existing City shall by virtue of this Order be held by the Corpo-
 ration for the benefit of the City and the Corporation shall hold enjoy
 and exercise for the benefit of the City all the powers which at the
 date aforesaid are exerciseable by or vested in the Corporation for
 the benefit of the existing City and all liabilities which on the date
 aforesaid attach to the Corporation in respect of the existing City shall
 from and after that date attach to them in respect of the City.

Art. XVI. Subject to the provisions of this Order—

Property &c. (1) All property and liabilities which immediately before the
of Rural commencement of this Order are vested in or attach to
Council. the Rural Council in relation exclusively to any part of
 the added areas shall by virtue of this Order be
 transferred to and vest in and attach to the Corporation
 as Urban Sanitary Authority and any property and
 liabilities vested in or attaching to the Rural Council in
 relation to any part of the added areas conjointly with
 any other area shall be a matter for adjustment under
 Section 62 of the Act of 1888:

Cesser of juris- (2) The Rural Council shall cease to exercise any powers or
isdiction of Rural have any duties within any part of the added areas:
Council.

Arrears of (3) All arrears of rates made by any Overseers of the Poor for
rates &c. the purposes of the Public Health Acts or for highway
 expenses or for the purposes of the Lighting and
 Watching Act 1833 which at the commencement of this
 Order are due or owing in respect of hereditaments in
 the added areas may be collected and recovered as if
 this Order had not been made and when collected and
 recovered shall be applied towards the discharge of any

precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the Parish of Twerton or in any part of the existing Parishes of Charlcomb or Weston for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses under the last-mentioned Act incurred by the Authority for executing that Act and the balances if any shall be paid to the Corporation :

A.D. 1911.
Bath Order.

(4) Any balances in the hands of the Overseers of the Parishes of Charlcomb and Weston at the commencement of this Order shall be a matter for adjustment under Section 62 of the Act of 1888 :

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

Adaptation
of provisions
as to adjust-
ment.

(6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the amalgamation of the added areas with the existing Parish of Bath that section shall have effect—

(A) As if the Overseers of the Parishes of Bath Charlcomb and Weston and the persons who immediately before the date of the operation of this Order were the Overseers of the Parish of Twerton or where the circumstances of the case so require any persons who may be substituted for those persons by an Order of the Local Government Board were within the meaning of the said section authorities affected by this Order ; and

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Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911.

Bath Order.

(B) As-if in subsection (5) of the Section the poor rate or other rate leviable in pursuance of the said Section as applied by this Article were substituted for any fund mentioned in the Section; and

(c) As if for subsections (6) and (7) of the said Section there were substituted the subsections hereunto appended (that is to say):—

“ (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish.”

“ (7) Any sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Local Government Board may authorise or direct.”

Mortgage
debts of
Corporation.

Art. XVII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the district fund and general district rate of the existing City shall by virtue of this Order be charged upon the district fund and general district rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing City shall by virtue of this Order be charged upon the borough fund and borough rate of the City and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Adoptive
Acts.

Art. XVIII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Private Street Works Act 1892 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the City as if the same had been adopted therein.

Powers under
Section 33 of
Act of 1894.

Art. XIX.—(1) Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of any order heretofore made by the Local Government Board and conferring upon

the Council of the existing City any of the matters mentioned in A.D. 1911.
Section 33 of the Act of 1894 and in that order shall be deemed to *Bath Order.*
have effect as if any reference to the existing Parish of Bath extended
and applied to the Parish of Bath.

(2) The provisions of the Public Improvements Act 1860 shall
cease to be in force in and apply to any part of the area of the
Parish of Twerton.

Art. XX.—(1) The total amount in the pound of the general *Differential*
district rates to be levied by the Corporation in any one year in *rating.*
respect of any hereditament in the added part of Charlcomb shall—

(A) during a period of five years from the commencement of this
Order be less by two shillings; and

(B) during a period of five years from the Ninth day of November
One thousand nine hundred and sixteen be less by one
shilling

than the total amount in the pound of the general district rates levied
by the Corporation in the same year in respect of any hereditament
of the like kind situate within the area of the existing City.

(2) The total amount in the pound of the general district rates to
be levied by the Corporation in any one year in respect of any
hereditament in the added part of Weston shall—

(A) during a period of five years from the commencement of this
Order be less by one shilling and tenpence; and

(B) during a period of five years from the Ninth day of November
One thousand nine hundred and sixteen be less by eleven-
pence

than the total amount in the pound of the general district rates levied
by the Corporation in the same year in respect of any hereditament
of the like kind situate within the area of the existing City.

(3) The total amount in the pound of the general district rates to
be levied by the Corporation in any one year in respect of any here-
ditament in the area of the Parish of Twerton shall—

(A) During a period of five years from the commencement of this
Order be less by sixpence; and

(B) During a period of five years from the Ninth day of November
One thousand nine hundred and sixteen be less by threepence

than the total amount in the pound of the general district rates levied
by the Corporation in the same year in respect of any hereditament
of the like kind situate within the area of the existing City.

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Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911.

Bath Order.
Corporation
to be Burial
Board for
City.

Art. XXI.—(1) The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts.

Abolition
of existing
Burial
Boards.

(2) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the existing Burial Boards and the Parish Council of the Parish of Twerton as the authority for the execution of the Burial Acts in that Parish shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the City and the existing Burial Boards shall be abolished and cease to exist.

Transfer of
property &c.

(3) Subject to any adjustment that may be made between the Corporation and the Parish Council of the Parish of Weston all property and liabilities which immediately before the commencement of this Order are vested in or attach to the said Parish Council as the authority for the execution of the Burial Acts in the existing Parish of Weston shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the City.

Saving rights
of burial.

(4) The rights of the parishioners and inhabitants of the Parish of Weston with regard to burial in the burial ground belonging to the existing Parish of Weston shall not be altered but shall continue as if this Order had not been made and the burial charges to such parishioners and inhabitants shall be the same as are made in respect of interments of persons resident in the added part of Weston.

(5) In relation to a burial ground provided by any of the existing Burial Boards or by the Parish Council of Twerton or the Parish Council of Weston or their predecessors—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or another person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

Burial fees
&c.

(6) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by any of the existing Burial Boards or either of the said Parish Councils as the Authority for the execution of the Burial Acts immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf. A.D. 1911.

Bath Order.

(7) Except so far as is necessary for any purpose of this Article the Burial Acts shall cease to apply and have effect by virtue of any adoption before the commencement of this Order in relation to the existing Parish of Weston. Cessation of
Burial Acts.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1909— Transfer of
public ele-
mentary
schools &c. to
Corporation.

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Subject to any adjustment to be hereafter made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the City and shall be repaid by the Corporation within the Mortgage
debts in
respect of
transferred
schools.

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Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911.

Bath Order.

period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Education
byelaws.

- (3) Any byelaws in force in the existing City immediately before the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

Managers.

- (4) Any managers of public elementary schools in the added areas who were appointed by the County Council or by the Parish Council of the Parish in which the school is situated shall vacate office at the commencement of this Order.

Special provi-
sions as re-
gards Twer-
ton Schools.

Art. XXIII. Notwithstanding anything in this Order contained the following provisions shall have effect:—

- (1) It shall be the duty of the Corporation to provide on the site already acquired for that purpose at Twerton by the County Council a higher elementary school such school to be erected in accordance with the plans already prepared by the County Council and sanctioned by the Board of Education or with any modification thereof that may be authorised by that Board:
- (2) Any sum of money paid by the County Council on or before the commencement of this Order under any contract for or in respect of the said higher elementary school shall be repaid to them by the Corporation with such interest as herein-after mentioned:
- (3) The Corporation shall as soon as may be after the commencement of this Order repay to the County Council the sum of Six hundred and one pounds nineteen shillings and one penny already paid by the County Council for and in respect of the purchase of the said site and the costs and expenses attending the same. If the said sum is not paid on the date of the commencement of this Order it shall carry interest as from that date at the rate of three per cent. per annum:
- (4) The consents of the Local Government Board issued to the County Council on the Twentieth day of December One thousand nine hundred and nine and the Fourth day of July One thousand nine hundred and ten to the borrowing by the County Council of the sums of Six hundred pounds for the purchase of the site of the said higher elementary school, of Four thousand four hundred and seventy-four pounds for the erection thereof and of Five hundred and

twenty-six pounds for the provision of furniture and fittings for the same and any other consent which may be issued by that Board for the purposes aforesaid shall as and from the commencement of this Order enure for the benefit of the Corporation to the extent to which they have not been acted upon by the County Council :

A.D. 1911.
Bath Order.

- (5) In any financial adjustment between the County Council and the Corporation the Corporation shall be debited with the actual amounts outstanding at the commencement of this Order of so much of the loans raised by the County Council as shall have been expended by them in providing or otherwise in connexion with the schools in the added area transferred by this Order to the Corporation :
- (6) In consideration of the obligation imposed on the Corporation by sub-division (1) of this Article the County Council shall as soon as may be after the commencement of this Order pay to the Corporation the sum of One thousand five hundred pounds already paid to them for the educational benefit of the Parish of Twerton by Mr. Jonathan Carr and such sum shall be applied by the Corporation to such purpose and in such manner as they shall agree with the said Jonathan Carr. If the said sum is not paid at the date of the commencement of this Order it shall carry interest as from that date at the rate of three per cent. per annum.

Art. XXIV.—(1) The duty of maintaining and repairing the three county bridges which by virtue of this Order become joint between the County Council and the Corporation together with the roadways thereover and the bridge approaches for a distance of one hundred yards measured along the road in each direction from the centre of the bridge shall devolve as follows namely As to Avon Bridge on the Lower Bristol Road and as to Pennyquick Bridge on the district road leading to the Village of Newton St. Loe and the approaches thereof respectively on the Corporation and as to New Bridge on the Upper Bristol Road and the approaches thereof on the County Council.

Special provision as regards Joint County bridges.

(2) An account shall be delivered by each authority to the other of them as soon as possible after the Thirty-first day of March in every year showing the cost of such maintenance and repair during the preceding twelve months or as regards the first of such accounts during the period that shall have elapsed after the date of the commencement of this Order and either Authority shall repay to the

[Ch. xxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911. other of them one moiety of such cost as soon as the account is
Bath Order. approved or in case of dispute is settled by arbitration the arbitrator
being unless otherwise agreed appointed by the Local Government
Board.

(3) Nothing contained in this Article shall authorise the carrying
out of any structural alterations to any of the said bridges or approaches
except on such terms as may be mutually agreed on.

County
police.

Art. XXV.—(1) At the commencement of this Order such members
if any of the police force of the County as shall be determined by
agreement to be made as soon as practicable after the date of the
Act of Parliament confirming this Order between the Standing Joint
Committee of the County and the Watch Committee of the existing
City or in default of such agreement as shall be determined by a
Secretary of State shall be transferred to and become part of the
police force of the City and any member of the county police force
so transferred shall hold office upon the same tenure and upon the
same terms and conditions as if this Order had not been made
and while he performs the same or similar duties his remuneration
emoluments and allowances and the pension (if any) to which he is
entitled shall not be less than they would have been if this Order
had not been made.

53 & 54 Vict.
c. 45.
6 Edw. 7. c. 7.

(2) The provisions of Section 15 (2) of the Police Act 1890 as
amended by the Police (Superannuation) Act 1906 shall extend and
apply to and in relation to any member of the police force trans-
ferred under the powers of this Article as if that member had removed
with the written sanction of the Chief Constable of the County.

Adjustment
of financial
relations
between
Counties
and County
Boroughs.

Art. XXVI.—(1) In any case where the extension of the existing
City by this Order affects the distribution of the proceeds of the local
taxation licences or of the estate duty grant or of the Local Taxation
(Customs and Excise) duties between the County and the City or between
the County and the City on the one hand and any other County
Borough on the other hand or any financial relations or questions
between those areas or any adjustment which has been made in regard
to the said distribution or financial relations or questions equitable
adjustments may be made between the areas interested:

For the purposes of this subdivision or of anything done or to be
done in pursuance of this subdivision any reference in the said sub-
division to the proceeds of licences or duties shall include a reference
to the sums which in pursuance of subsection (4) of Section 17 of the
Finance Act 1907 as amended by Section 6 of the Finance Act 1908
and Section 88 of the Finance (1909-10) Act 1910 have been paid or
will be payable in lieu of those proceeds.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City the County and the County Boroughs affected before the Thirtieth day of September One thousand nine hundred and twelve and in default of any such agreement by the Local Government Board or if that Board think fit by any arbitrator appointed by them.

A.D. 1911.
 Bath Order.

(3) In any case in which an agreement for equitable adjustment as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

(A) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and

(B) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

(4)—(A) An equitable adjustment shall be made between the County and the City respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

Adjustment
 for purposes
 of Licensing
 (Consolidation)
 Act 1910.

(B) Such adjustment shall be made by agreement between the Compensation Authority as defined by the Licensing (Consolidation) Act 1910 for the County and for the City respectively within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

(c) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of that Act shall apply accordingly.

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Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911.

Bath Order.

County
Councillors
and Electoral
Divisions.

Art. XXVII. Subject to the provisions of Section 54 of the Act of 1888—

- (1) The number of County Councillors for the County shall be diminished from sixty-nine to sixty-seven and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be further altered accordingly :
- (2) The Twerton and Weston Electoral Divisions of the County shall be abolished and the persons who immediately before the commencement of this Order are the County Councillors representing the said Electoral Divisions shall cease to hold office :
- (3) The Batheaston Electoral Division of the County shall be altered by the exclusion therefrom of the added part of Charlcomb and by the addition thereto of the Parish of Weston and the person who immediately before the commencement of this Order is the County Councillor representing that Electoral Division shall continue to represent that Electoral Division as if he had been originally elected to represent that Electoral Division as hereby altered :
- (4) Subject as provided in this Article no County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the transfer of any part of the added areas to the existing City by this Order.

Alteration of
parishes.

Art. XXVIII.—(1) The added part of Charlcomb shall be separated from the existing Parish of Charlcomb and the added part of Weston shall be separated from the existing Parish of Weston.

(2) The added part of Charlcomb the added part of Weston and the Parish of Twerton shall be amalgamated with the existing Parish of Bath.

Rural Dis-
trict Coun-
cillors and
Guardians.

Art. XXIX. Subject to the provisions of Section 60 of the Act of 1894 and as regards any alteration of the wards hereby constituted to the provisions of that Act as to the alteration of wards for the election of guardians the following provisions shall have effect:—

- (1) The number of Guardians for the Parish of Bath shall be increased from thirty to thirty-seven :
- (2) The Parish of Bath shall for the purposes of the election of guardians be divided into thirteen wards :
- (3) Of the nine existing Wards the following eight Wards and the number of Guardians respectively assigned thereto

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shall remain unaltered namely the Bathwick Ward the Kingsmead Ward the Lyncombe and Widcombe (No. 1) Ward the Lyncombe and Widcombe (No. 2) Ward the Saint James' Ward the Saint Michael's Ward the Walcot East Ward and the Walcot West Ward :

A.D. 1911.
Bath Order.

- (4) The existing Lansdown Ward shall be altered by the addition thereto of the added part of Charlcomb The persons who at the commencement of this Order are the Guardians elected for the existing Lansdown Ward shall be deemed to have been elected for that Ward as hereby altered and shall continue to hold office until the date on which they would have retired if this Order had not been made :
- (5) So much of the Parish of Bath as is comprised in the area of the Parish of Twerton shall be divided into three new Wards named respectively the Twerton East Ward comprising the area of the East Ward of the Parish of Twerton to which one Guardian shall be assigned the Twerton South Ward comprising the area of the South Ward of the Parish of Twerton to which two Guardians shall be assigned and the Twerton West Ward comprising the area of the West Ward of the Parish of Twerton to which two Guardians shall be assigned The persons who at the commencement of this Order are the Rural District Councillors elected for the East Ward the South Ward and the West Ward of the Parish of Twerton respectively shall cease to act as Rural District Councillors but shall continue to act as members of the Board of Guardians of the Bath Union and shall be deemed to be the Guardians elected for the Parish of Bath representing the Twerton East Ward the Twerton South Ward and the Twerton West Ward respectively and shall continue to hold office in that capacity until the date on which they would have retired if this Order had not been made : .
- (6) So much of the Parish of Bath as is comprised in the added part of Weston shall constitute a new Ward to be called the Weston Ward two Guardians shall represent that Ward and such two of the Rural District Councillors who at the commencement of this Order represent the existing Parish of Weston as are chosen by the Rural Council by ballot at the meeting held next before the said date shall cease to act as Rural District Councillors but shall continue to act as members of the Board of Guardians of the Bath Union and shall be deemed to be the Guardians

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Bath Order.

elected for the Parish of Bath representing the Weston Ward and shall continue to hold office in that capacity until the date on which they would have retired if this Order had not been made :

(7) The other two persons who at the said date are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Weston shall be deemed to have been elected and shall represent the Parish of Weston as if they had been originally elected to represent the Parish of Weston :

(8) The person who at the said date is holding the office of Rural District Councillor and Guardian of the Poor for the existing Parish of Charlcomb and the Parish of Langridge shall be deemed to have been elected and shall represent the Parish of Charlcomb and the Parish of Langridge as if he had been originally elected to represent those Parishes.

Parish
Councils.

Art. XXX.—(1) Any powers and duties transferred by the Act of 1894 to the Parish Council of the existing Parish of Charlcomb or of the existing Parish of Weston shall so far as regards the added part of Charlcomb or the added part of Weston be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Charlcomb or the added part of Weston as the case may be had been included in a parish in the existing City on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part of Charlcomb or the added part of Weston for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Charlcomb or the added part of Weston by virtue of this Order be transferred to and vest in and attach to the Corporation.

(2) The Parish Councils of the existing Parish of Charlcomb and the existing Parish of Weston shall be deemed to have been elected and shall be the Parish Councils for the Parish of Charlcomb and the Parish of Weston respectively.

(3) Subject to the provisions of this Order the Parish Council of Twerton shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Meeting of that Parish shall be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

whom they would be exerciseable or on whom they would be imposed if that Parish had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and all property or liabilities held or incurred for the purpose or by virtue of those powers or duties shall by virtue of this Order pass to and vest in or attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of those powers or duties shall by virtue of this Order vest in and be transferred and attach to the Corporation.

A.D. 1911.
Bath Order.

(4) The accounts of the Parish Council of Twerton and of its committees and officers if any shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made:

Audit of
accounts of
Parish Coun-
cil.

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the treasurer of the City.

Art. XXXI. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish affected by this Order. The Local Government Board may make an order under Section 33 of the Act of 1894 with respect to any charity of either of the existing Parishes of Bath and Twerton as if those Parishes had not been amalgamated.

Ecclesiastical
divisions and
charities.

Art. XXXII. Until new valuation lists are in force—

Valuation
lists.

(1) The valuation list of the Parish of Twerton and the portions of the valuation lists of the existing Parish of Charlcomb and of the existing Parish of Weston which relate to hereditaments in the added areas shall be deemed to form part of the valuation list of the Parish of Bath:

(2) The remaining portions of the valuation lists of the existing Parish of Charlcomb and of the existing Parish of Weston shall be deemed to be the valuation lists of the Parish of Charlcomb and of the Parish of Weston respectively.

Art. XXXIII.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered by the omission therefrom of the amount appearing therein as

County rate
basis.

[Ch. xxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
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A.D. 1911. the total annual value of the property in the Parish of Twerton and by
Bath Order. the deduction from the amount appearing therein as the total annual
 value of the property in the existing Parish of Charlcomb and the
 existing Parish of Weston of such a sum in each case as will represent
 the annual value of the property in the part of the Parish which is
 included by this Order in the Parish of Bath.

(2) For the purposes of this Article the sum which will represent the annual value of the property in the part of the Parish of Charlcomb and in the part of the Parish of Weston included by this Order in the Parish of Bath shall in each case be the amount which in relation to the amount appearing in the basis or standard of the county rate as the total annual value of the existing parish is in the proportion which the assessable value of the property in the affected part of the existing parish bears to the total assessable value of property in the existing parish.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or in the part included in the Parish of Bath as the case may require.

Saving for
existing lists
of parliamen-
tary voters
&c.

Art. XXXIV. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation :

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting in the Parishes of Charlcomb and Weston the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Settlement
and removal
of the poor.

Art. XXXV. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect (that is to say) :—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes of Bath Charlcomb Weston and Twerton by reason of any residence completed or in the course of completion of any act or thing done or in

the course of being done or of any status condition right or A.D. 1911.
privilege acquired or created or in the course of acquisition *Bath Order.*
or creation—

- (i) in the existing Parish of Bath ; or
- (ii) in the existing Parish of Twerton ; or
- (iii) in the added part of Charlcomb ; or
- (iv) in that part of the existing Parish of Charlcomb
which by virtue of this Order will form the Parish of
Charlcomb ; or
- (v) in the added part of Weston ; or
- (vi) in that part of the existing Parish of Weston
which by virtue of this Order will form the Parish of
Weston

shall be deemed to have acquired or to be in the course
of acquiring in the first second third and fifth cases a
settlement in the Parish of Bath in the fourth case a settle-
ment in the Parish of Charlcomb and in the sixth case a
settlement in the Parish of Weston and in each case as if
the existing parish or the added part or the specified part
of the existing parish were and had always been the parish
or a part of the parish in which by virtue of this Article
the person shall be deemed to have acquired or to be in
the course of acquiring a settlement :

- (2) Every person who at the commencement of this Order has
acquired or is in the course of acquiring a status of
irremovability from the Bath Union by reason of
residence—

- (i) in the existing Parish of Bath ; or
- (ii) in the existing Parish of Twerton ; or
- (iii) in the added part of Charlcomb ; or
- (iv) in that part of the existing Parish of Charlcomb
which by virtue of this Order will form the Parish of
Charlcomb ; or
- (v) in the added part of Weston ; or
- (vi) in that part of the existing Parish of Weston
which by virtue of this Order will form the Parish of
Weston

shall be deemed to have acquired or to be in the course of
acquiring the like status by reason of residence in the first
second third and fifth cases in the Parish of Bath in the
fourth case in the Parish of Charlcomb and in the sixth
case in the Parish of Weston.

[Ch. xxxv.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

A.D. 1911. Art. XXXVI. Notwithstanding the alteration in the areas of the
Bath Order. parishes effected by this Order all contribution orders made by the
 Saving for Guardians of the Poor of the Bath Union and all precepts made by
 contribution the Rural Council before the commencement of this Order shall be as
 orders and valid in law as if this Order had not been made.
 precepts.

Arrears of Art. XXXVII. All arrears of rates made by the Overseers of the
 rates. Poor of the existing Parish of Charlcomb or of the existing Parish of
 Weston or of the Parish of Twerton and due or owing at the com-
 mencement of this Order in respect of hereditaments in the added
 areas shall be collected and recovered by the Overseers of the Poor of
 the Parish of Charlcomb or the Parish of Weston or the Parish of
 Bath as the case may be as if this Order had not been made.

Short title. Art. XXXVIII. This Order may be cited as the Bath (Extension)
 Order 1911.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
29 Geo. III. c. lxxiii. -	An Act for Protecting and Securing the Hot Baths and Springs within the City of Bath from Injury by Incroachments and Annoyances for enlarging or rebuilding the present Pump Rooms there for widening certain Streets Lanes and Public Passages and for making certain new Streets and Passages to render the Approaches to the said Hot Baths Springs and Pump Rooms more safe and commodious.
9 & 10 Vict. c. ccxx. -	The Bath Corporation Water Act 1846.
14 & 15 Vict. c. civ. -	The City of Bath Act 1851.
33 & 34 Vict. c. liii. -	The Bath Act 1870.
42 & 43 Vict. c. lxii. -	The Bath Act 1879.
3 Edw. 7. c. ccvii. -	The Bath Corporation Water Act 1903.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Order (1910) Confirmation (No. 12) Act, 1911.

PART II.—CONFIRMATION ACTS.

A.D. 1911.

Bath Order.

Session and Chapter.	Short Title.	Order thereby confirmed.
38 & 39 Vict. c. clxxv.	The Local Government Board's Provisional Orders Confirmation (Aberdare &c.) Act 1875.	The Bath Order 1875.
39 & 40 Vict. c. cci.	The Local Government Board's Provisional Orders Confirmation (Bath &c.) Act 1876.	The Bath Order 1876.
50 & 51 Vict. c. cxi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1887.	The Bath Order 1887.
51 & 52 Vict. c. cxxxiv.	The Local Government Board's Provisional Orders Confirmation (No. 10) Act 1888.	The Bath Order 1888.
55 & 56 Vict. c. ccxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1892.	The Bath Order 1892.
60 & 61 Vict. c. lxxiv.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1897.	The Bath Order (No. 2) 1897.
62 & 63 Vict. c. cxii.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1899.	The Bath Order (No. 3) 1899.
10 Edw. 7 & 1 Geo. 5 c. lxxxviii.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1910.	The Bath Order (No. 2) 1910.

Given under the Seal of Office of the Local Government Board
this Eleventh day of June One thousand nine hundred and
ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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